

**UNITED STATES OF AMERICA
BEFORE THE NATIONAL LABOR RELATIONS BOARD
WASHINGTON, D.C.**

STARBUCKS CORPORATION

and

**WORKERS UNITED a/w SERVICE
EMPLOYEES INTERNATIONAL UNION**

**Cases 19-CA-294708
28-CA-289622
28-CA-291044
28-CA-292106
28-CA-292326
28-CA-294010
28-CA-296535
28-CA-296858
28-CA-297257
28-CA-307797
28-CA-313214
28-CA-313426
28-CA-313432
28-CA-313458**

**COUNSEL FOR THE ACTING GENERAL COUNSEL’S MOTION TO
WITHDRAW CERTAIN EXCEPTIONS AND ARGUMENTS**

Pursuant to Section 102.47 of the Rules and Regulations of the National Labor Relations Board (Board’s Rules), Counsel for the Acting General Counsel (AGC) respectfully moves to withdraw portions of its Exceptions to the Administrative Law Judge’s Decision (Exceptions), Brief in Support of Exceptions (Exceptions Brief), Answering Brief to Respondent’s Exceptions to the Administrative Law Judge’s Decision (Answering Brief), and Reply Brief to Respondent’s Answering Brief to the AGC’s Exceptions (Reply Brief).

On June 7, 2024, the Administrative Law Judge (ALJ) issued a decision in the above cases finding merit to some of the allegations and recommending the dismissal of others. On August 5, 2024, the AGC filed its Exceptions and Exceptions Brief to portions of the ALJ’s decision related to the dismissal recommendations, pursuant to Section 102.46 of the Board’s

Rules. On October 3, 2024, the AGC filed its Answering Brief, and on October 17, 2024 the AGC filed its Reply Brief. Consistent with the Acting General Counsel's rescission of certain General Counsel Memoranda on February 14, 2025, the AGC hereby moves to withdraw its filings with the Board as set forth below.

I. Exceptions and Exceptions Brief

1. The AGC partially withdraws Exception 5 to the ALJ's failure to find that Respondent's maintenance of the Solicitation/Distribution of Notices rule in its Partner Guide constituted an unfair labor practice within the meaning of Section 8(a)(1) of the Act to the extent that it seeks to overturn *Register Guard*, 351 NLRB 1110, 1119 (2007) (*Register Guard*) and return to the standard set forth in *Fleming Cos.*, 336 NLRB 192 (2001), enf. denied 349 F.3d 968 (7th Cir. 2003) (*Fleming Cos.*). The AGC further withdraws its corresponding argument on pages 15 to 19 of its Exceptions Brief. The AGC maintains its Exception and corresponding argument that Respondent's Solicitation/Distribution of Notices Rule Interferes with Employees' Rights under Section 7 of the Act because it is facially unlawful under extant precedent.
2. The AGC withdraws Exceptions 6 and 7 to the ALJ's failure to find that Respondent's maintenance of the Acceptable Use of Starbucks Electronic Communications Systems and Mobile Computing rules in its Partner Guide constituted an unfair labor practice within the meaning of Section 8(a)(1) of the Act. The AGC's Exceptions 6 and 7 sought for the Board to overrule *Rio All-Suites Hotel and Casino*, 368 NLRB No. 143 (2019) (*Rio All-Suites*) and reinstate and expand the application of the standard established by the Board in *Purple Communications, Inc.*, 361 NLRB 1050 (2014) (*Purple*

Communications). The AGC further withdraws its corresponding argument on pages 20 to 28 of its Exceptions Brief.

3. The AGC withdraws Exception 10 to the ALJ's failure to order expungement of discipline, retraction of legal enforcement actions, and a make-whole remedy for all employees affected by enforcement of Respondent's overly-broad and discriminatory rules if the targeted conduct touches upon concerns animating Section 7 of the Act. The AGC's Exception 10 concerns remedies not awarded by the ALJ and sought for the Board to expand the remedy for overbroad rules established in *Continental Group, Inc.*, 357 NLRB 409 (2011). The AGC further withdraws its corresponding argument on pages 31 to 43 of its Exceptions Brief.
4. The AGC partially withdraws Exception 11 to the ALJ's failure to specifically find that, by issuing a Written Warning to its employee Laila Dalton (Dalton) on January 25, 2022, pursuant to the How We Communicate rule in its Partner Guide, Respondent applied the How We Communicate rule to restrict its employees' protected concerted activities, in violation of Section 8(a)(1) of the Act to the extent that it seeks to overturn *AT&T Mobility*, 370 NLRB No. 121 (2021) (*AT&T*) and adopt the modified standard articulated in then Chairman McFerran's dissent in *AT&T*, and order a remedy consistent with that modified standard in this case. The AGC further withdraws its corresponding argument on pages 44 to 45 of its Exceptions Brief. The AGC maintains its Exception and corresponding argument that Respondent's rule was unlawfully applied to restrict Section 7 activity.
5. The AGC partially withdraws Exception 16 to the ALJ's failure to find that Respondent applied the Video Recording, Audio Recording and Photography rule in its Partner Guide

to restrict its employees' protected concerted activities by discharging its employee Dalton on April 4, 2022, in violation of Section 8(a)(1) of the Act to the extent that it seeks to overturn *AT&T* and adopt the modified standard articulated in then Chairman McFerran's dissent in *AT&T*, and order a remedy consistent with that modified standard in this case. The AGC further withdraws its corresponding argument on page 53 of its Exceptions Brief. The AGC maintains its Exception and corresponding argument that Respondent's rule was unlawfully applied to restrict Section 7 activity.

6. The AGC withdraws Exception 22 to the ALJ's failure to find that, about June 2, 2022, Respondent discharged its employee Milyanna Romero (Romero) without prior notice to the Union, and/or without affording the Union an opportunity to bargain with Respondent with respect to this conduct and/or the effects of this conduct, and/or without first bargaining with the Union to an overall good-faith impasse for a collective-bargaining agreement, in violation of Section 8(a)(5) of the Act. The AGC's Exception 22 sought for the Board to overrule *Care One at New Milford*, 369 NLRB No. 109 (2020), revisit extant law, find a pre-imposition obligation to bargain over discretionary discipline, and find that Respondent failed to meet that standard by discharging Romero without affording the Union notice and an opportunity to bargain. The AGC further withdraws its corresponding argument on pages 64 to 78 of its Exceptions Brief.
7. The AGC partially withdraws Exception 27 to the ALJ's failure to find that Respondent applied the How We Communicate rule and Mission and Values rule in its Partner Guide to restrict its employees' protected concerted activities by discharging its employee Brittney Schmitt (Schmitt), in violation of Section 8(a)(1) of the Act to the extent that it seeks to overturn *AT&T* and adopt the modified standard articulated in then Chairman

McFerran's dissent in *AT&T*, and order a remedy consistent with that modified standard in this case. The AGC further withdraws its corresponding argument on page 88 of its Exceptions Brief. The AGC maintains its Exception and corresponding argument that Respondent's rule was unlawfully applied to restrict Section 7 activity.

II. Answering Brief

8. The AGC withdraws Footnote 12 on pages 31 to 32 of its Answering Brief. Footnote 12 seeks to overturn *Register Guard*, and return to the standard set forth in *Fleming Cos.* Further, Footnote 12 urges the Board to overrule the discrimination standard it adopted for union access cases in *Kroger Limited Partnership I Mid-Atlantic*. 368 NLRB No. 64, slip op. at 1-2 (2019).
9. The AGC partially withdraws Section III (E) (2) on page 82 of its Answering Brief to the extent it argues the Board should adopt a notice-reading requirement as a standard remedy in unfair labor practice cases for the reasons explained by Member Prouty in *Hilton Anchorage*, 371 NLRB No. 151, slip op. at 9-15 (2022) (Member Prouty, concurring). The AGC maintains its argument that a notice reading remedy is appropriate in this case in all other respects.

III. Reply Brief

10. The AGC partially withdraws Section II (B) on pages 5 to 8 of its Reply Brief. In responding to the General Counsel's argument that the Board should overturn *Rio All-Suites* and return to, and expand upon, the standard announced in *Purple Communications*, Respondent contends that doing so would constitute an unlawful taking in violation of the Fifth Amendment. Because the AGC is no longer seeking a return to

Purple Communications (see Exceptions 6 and 7 above), the issue of a Fifth Amendment taking is moot.

Accordingly, the AGC respectfully requests to withdraw portions of its Exceptions, Exceptions Brief, Answering Brief, and Reply Brief for the reasons set forth above.

Dated at Phoenix, AZ, this 16th day of April 2025.

Respectfully submitted,

/s/ Nicholas J. Gordon

Nicholas Gordon
Counsel for the Acting General Counsel
National Labor Relations Board, Region 28
2600 North Central Avenue, Suite 1400
Phoenix, AZ 85004
Telephone: (602) 416-4756
Email: nicholas.gordon@nlrb.gov

CERTIFICATE OF SERVICE

I hereby certify that the **COUNSEL FOR THE ACTING GENERAL COUNSEL'S MOTION TO WITHDRAW CERTAIN EXCEPTIONS AND ARGUMENTS** in *Starbucks Corporation*, Cases 28-CA-289622, et al., was served via E-Filing and E-Mail, on the 16th day of April 2025, on the following:

Via E-Filing:

Roxanne L. Rothschild, Executive Secretary
National Labor Relations Board
Office of the Executive Secretary
1015 Half Street SE – Room 5100
Washington, DC 20570

Via E-Mail:

Adam-Paul Tuzzo, Attorney
Jonathan O. Levine, Attorney
Littler Mendelson, P.C.
111 East Kilbourn Avenue, Suite 1000
Milwaukee, WI 53202
Email: atuzzo@littler.com

David A. Kadela, Attorney
Littler Mendelson, PC
21 East State Street, 16th Floor
Columbus, OH 43215
Email: dkadela@littler.com

Ryan P. Hammond, Attorney
Alyson D. Dieckman, Attorney
Littler Mendelson, P.C.
600 University Street, Suite 3200
Seattle, WA 98101-2376
Email: rhammond@littler.com
Email: adieckman@littler.com

Jeffrey B. Jones, Attorney
Littler Mendelson, P.C.
111 North Orange Avenue, Suite 1750
Orlando, FL 32801
Email: jjones@littler.com

Robert S. Giolito, Attorney
Law Office of Robert S. Giolito P.C.
1626 Montana Avenue, Suite 201
Santa Monica, CA 90403
Email: rgiolito@giolitolaw.com

Brittany L. Stepp, Attorney
Littler Mendelson, PC
Three Parkway
1601 Cherry Street, Suite 1400
Philadelphia, PA 19102
Email: bstepp@littler.com

Erik C. Hult, Attorney
Littler Mendelson, P.C.
41 South High Street, Suite 3250
Columbus, OH 43215
Email: ehult@littler.com

Janell Ahnert, Attorney
Littler Mendelson, P.C.
420 20th Street North, Suite 2300
Birmingham, AL 35203-5210
Email: jahnert@littler.com

Monica Sislak, Attorney
Littler Mendelson, P.C.
127 Public Square, Suite 1600
Cleveland, OH 44114
Email: msislak@littler.com

Yijee Jeong, Attorney
Ian C. Beck, Attorney
Littler Mendelson, PC
Camelback Esplanade
2425 East Camelback Road, Suite 900

Phoenix, AZ 85016-4242
Email: yjeong@littler.com
Email: ibeck@littler.com

Ira Jay Katz, Attorney
Western States Regional Joint Board,
Workers United a/w SEIU
5 Roosevelt Place, Apt. 6L
Montclair, NJ 07042
Email: ira.katz@workers-united.org

Michael Dolce, Attorney
Hayes Dolce
471 Voorhees Avenue
Buffalo, NY 14216
Email: mdolce@hayesdolce.com

James A.W. Shaw, Attorney
Segal Roitman, LLP
33 Harrison Avenue, 7th Floor
Boston, MA 02111
Email: jshaw@segalroitman.com

Ian Hayes, Attorney
Hayes Dolce
135 Delaware Avenue, Suite 502
Buffalo, NY 14202
Email: ihayes@hayesdolce.com

Mary Joyce Carlson, Attorney
110 New York Avenue NW, Suite 500 West
Washington, DC 20005
Email: carlsonmjj@yahoo.com

Gabe Frumkin, Attorney
Marina Multhaup, Attorney
Dmitri Iglitzin, Attorney
Alyssa Garcia, Attorney
Danielle Franco-Malone, Attorney
Julian Gonzalez, Attorney
Barnard Iglitzin & Lavitt LLP
18 West Mercer Street, Suite 400
Seattle, WA 98119-3971
Email: frumkin@workerlaw.com
Email: multhaup@workerlaw.com
Email: iglitzin@workerlaw.com
Email: garcia@workerlaw.com
Email: franco@workerlaw.com
Email: gonzalez@workerlaw.com



Dawn M. Moore
Program Support Assistant
National Labor Relations Board
Region 28 - Las Vegas Resident Office
Foley Federal Building
300 Las Vegas Boulevard South, Suite 2-901
Las Vegas, Nevada 89101
Telephone: (702) 820-7466
Facsimile: (702) 388-6248
E-Mail: Dawn.Moore@nlrb.gov